

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

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LENNY SWINTON,

Plaintiff

- against -

**THE CITY OF NEW YORK,
POLICE OFFICER LUIS SIGUENCIA**

Defendant.

Index No. _____

Purchased _____

Plaintiff designates The Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
April 9, 2024



MARTINDALE & ASSOCIATES, PLLC

By: Conway C. Martindale II

Attorney for Plaintiff

295 Madison Avenue, 12th Floor

New York, NY 10017

(212) 405-2233

Defendant's Address:
CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

=====X
LENNY SWINTON

Plaintiff,

**Index No.
Verified Complaint**

- against -

**THE CITY OF NEW YORK,
POLICE OFFICER LUIS SIGUENCIA**

Defendant.
=====X

Plaintiff, by his attorney, **MARTINDALE & ASSOCIATES, PLLC**, as and for his Verified Complaint, respectfully alleges, upon information and belief:

1. This is a civil litigation action seeking damages against Defendants for committing acts under color of law, and depriving Plaintiff of rights secured by the Constitution and laws of the United States. Defendants, while acting in their capacities as policemen of the City of New York, State of New York, deprived Plaintiff of his liberty without due process of law, thereby depriving Plaintiff of his rights, privileges and immunities as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States. The Court has jurisdiction of this action under 42 U.S.C. § 1983, 28 U.S.C. § 1343, and 28 U.S.C. §1331.
2. Plaintiff, at all times herein mentioned, was and still is a resident of New York County in the State of New York.
3. At all times mentioned herein, Defendants POLICE OFFICER SIGUENCIA was and still is a resident of the State of New York.

4. At all times herein mentioned, Defendant CITY OF NEW YORK ("NYC") was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.

5. At all times herein mentioned, Defendant NYC and Defendant P.O. SIGUENCIA stood in such a relationship with each other in providing law enforcement services as to make each liable for the acts and omissions of the others.

6. Defendant NYC is vicariously liable for the acts of Defendants P.O. SIGUENCIA

7. At all times herein mentioned, Defendants P.O. SIGUENCIA was and is still a police officer employed by the New York City Police Department ("NYPD").

**AS AND FOR A FIRST 1983 CAUSE OF ACTION FOR
MALICIOUS PROSECUTION AS AGAINST ALL DEFENDANTS IN VIOLATION OF
PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS**

8. Plaintiff repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

9. Plaintiff sues all Defendants in their capacities.

10. In the evening of February 22, 2023, SWINTON picked up his girlfriend at her job in the vicinity of Burnside Avenue in Bronx County.

11. After picking her up, SWINTON and his girlfriend went to pick up some food for dinner and headed to her home located at 1705 Purdy Street, Bronx, NY 10462.

12. After eating, at around 10:30pm, members of the NYPD, including SIGUENCIA, came to the apartment door of SWINTON's girlfriend.

13. Upon violently banging on the door, SWINTON's girlfriend opened the door to the members of the NYPD, including SWINTON, asking for someone named "Lenny".

14. SWINTON came to the door and stated that he was in fact "Lenny".
15. The NYPD officers, including "SIGUENCIA" informed SWINTON that there was an order of protection that he was accused of violating, despite the fact that no order of protection was in effect against SWINTON at that time.
16. The NYPD officers handcuffed SWINTON with no resistance from SWINTON despite him knowing there was no actual order of protection against him.
17. SWINTON was escorted downstairs to an awaiting NYPD vehicle where he was put inside along with SIGUENCIA.
18. The NYPD officers sped off along with SWINTON, driving at a high rate of speed, ignoring traffic lights with no sirens on.
19. Before reaching the precinct, the NYPD vehicle, still with no sirens on, ran a red light and was t-boned by another vehicle who had the right of way.
20. Upon the collision, because SWINTON was handcuffed behind his back, SWINTON hit his head and right shoulder against the window because he couldn't brace himself.
21. SWINTON was taken to Jacobi Hospital, given pain meds and then taken to the 43rd Precinct.
22. Upon reaching the precinct, SWINTON was told he was there for a 2015 open container warrant despite being previously told that he was being brought in for a violation of an order of protection.
23. SWINTON remained in the precinct until between 10-11am of February 23, 2023, where he was brought to central booking.
24. Between 2pm-3pm on February 23, 2023, SWINTON was brought in front of a judge where he was told that no such warrant existed for his arrest.

25. SWINTON was released immediately.

26. After being released, SWINTON visited Harlem Hospital to get a follow up physical exam where he was diagnosed with whiplash injury syndrome.

27. The wrongful, unjustifiable and unlawful apprehension, arrest, detention, imprisonment and malicious prosecution were all carried out without a warrant or probable cause and with malice.

28. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff.

29. Prior to April 23, 2016, NYC and the NYPD developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Plaintiff's rights. It was the policy and/or custom of NYC to inadequately and improperly investigate citizens' complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by CITY. It was the policy and/or custom of CITY to inadequately supervise and train its police officers, managers and employees including the respondent officers, thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrests as possible without concern for the validity of those arrests. The respondents' agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convince at the expense of others.

AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT HIRING AND SUPERVISION

30. Plaintiff repeats and re-alleges each and every allegation above as if set forth at length

herein.

31. Prior to on or about February 22, 2023, Defendant NYC knew or should have known Defendants P.O. SIGUENCIA to be unruly and to verbally threaten and to harass other human beings and to make unlawful arrests.

32. That defendant NYC negligently hired and trained P.O. SIGUENCIA, negligently failed to supervise or discharge him from their employ, thereby causing and contributing to the above stated incident.

33. Plaintiff was caused to sustain serious injuries, caused to suffer pain, offense, shock and mental anguish; that these injuries and their effects will be permanent; Plaintiff was and will continue to be rendered unable to perform his normal activities and duties having sustained a resultant loss there from.

**AS AND FOR A THIRD CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS**

34. . Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein

35. The Defendants, and each of them, acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, malicious prosecution, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff's protestations, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.

36. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against

Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to Plaintiff.

37. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff and injury to his good name and reputation.

38. Said harm did in fact occur in this case, in that Plaintiff was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health.

39. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS**

40. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

41. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff well-being, and were based on a lack of concern and ill-will towards Plaintiff.

42. Plaintiff therefore demands punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff LENNY SWINTON demands judgment against the Defendant in the sum of \$10,000,000, together with the costs and disbursements of this action as well as any other additional relief this Court deems just and proper.

Dated: April 9, 2024
New York, NY



MARTINDALE & ASSOCIATES, PLLC
By: Conway C. Martindale II
Attorney for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10017
(212) 405-2233

VERIFICATION

The undersigned, the Plaintiff in this action, affirms under the penalties of perjury:

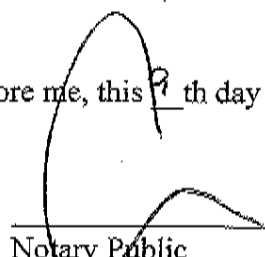
That deponent is the plaintiff in the within action; that deponent has read the foregoing **VERIFIED SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
April 9, 2024


LENNY SWINTON

Subscribed and sworn to before me, this 9th day of April 2024


Notary Public

CONWAY C MARTINDALE II
NOTARY PUBLIC, STATE OF NEW YORK
Registration No. 02MA6383802
Qualified in New York County
My Commission Expires: 5/26/27

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

Index No:

LENNY SWINTON,

Plaintiff,

-against-

**THE CITY OF NEW YORK,
POLICE OFFICER LUIS SIGUENCIA**

Defendant.

SUMMONS & COMPLAINT

Martindale & Associates, PLLC
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY. 10168
(212) 405-2233

**TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

POLICE OFFICER LUIS SIGUENCIA
1 Lefrak City Plaza
Flushing, NY 11368